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Case Name: *Keep America Safe and Beautiful v. General Printing & Design, Inc., et al.*

Case No.: 25CV473892

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Keep America Safe and Beautiful (“Plaintiff”) moves under Code of Civil Procedure Section 664.6 and Health and Safety Code Section 25249.7(f) for an Order approving the Settlement and entry of the “[Proposed] Judgment Pursuant to the Terms of Proposition 65 Settlement and Consent Judgment.” Notice of Motion (the “Motion”) at 1:18-25 (filed: Jan. 21, 2026).

The Motion came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

The parties here have acted in an exemplary manner by efficiently, effectively, and professionally:

- negotiating and entering a Proposition 65 Settlement (the “Settlement”), and
- submitting a proposed Consent Judgment, setting forth the terms and conditions of the Settlement, which provides appropriate remedies and well serves the public interest.

The parties in this Motion ask the Court to approve the Settlement and sign and enter the proposed Consent Judgment.

Also, in connection with this Settlement, the parties have negotiated and agreed that Defendant General Printing & Design, Inc. (“Defendant”) will pay Plaintiff for Plaintiff’s attorneys’ fees and costs in the total amount of \$26,272.33, which the parties ask the Court to find reasonable and approve now.

Moreover, in due compliance with California law, the parties have provided copies and proper notice of the proposed Consent Judgment to the Office of the California Attorney General,³ which has not opposed this Motion. Indeed, no one opposes this Motion.

³ See Affidavit of Compliance with California Code of Regulations, title 11, § 3000 *et seq.* (filed: Jan. 21, 2026, signed under penalty of perjury by attorney Laralei Paras).

The Court commends the parties for devoting substantial time and resources to reach this Settlement that meets all the criteria established by Proposition 65 and well serves the public interest. More specifically, the Court approves this Settlement entered by these private parties in this Proposition 65 enforcement action because the Court finds all the following to be true and well established by the record:

1. The injunctive relief required by the Settlement complies with Proposition 65;
2. The Civil Penalty that the parties agree to in the Settlement is reasonable based on the specific facts and circumstances of this case with reference to each factor enumerated by Health & Safety Code § 25249.7(b)(2);
3. The attorneys' fees and costs that Defendant has agreed to pay Plaintiff for in the total amount of \$26,272.33 are reasonable in all respects, including both the hourly rate and numbers of hours of attorney work sought;⁴ and
4. The Court further finds that all requirements of Code of Civil Procedure Section 1021.5 are met for this award of attorneys' fees, including that the injunctive relief obtained by the Settlement confers significant public benefits justifying this \$26,272.33 award of Plaintiff's attorneys' fees and costs to be paid by Defendant.⁵

Conclusion & Order

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, the Court **ORDERS**:

1. The Settlement is approved in all respects;
2. The amount of \$26,272.33 for Plaintiff's attorneys' fees and costs is reasonable and will be promptly paid by Defendant;
3. The Court will sign and enter the proposed Consent Judgment today; and
4. The Court retains jurisdiction to enforce the terms of the Settlement and the Consent Judgment under Code of Civil Procedure Section 664.6.

SO ORDERED.

⁴ The amount, hourly rate, and hours sought for this award of attorneys' fees and costs is well supported in detail in the Declaration of attorney Laralei Paras in Support of Motion ("Paras Decl.") at ¶¶ 17-24 (filed: Jan. 21, 2026).

⁵ The fact that the terms and conditions of the Settlement and Consent Judgment confer significant public benefits is well supported in detail in the Paras Declaration, ¶¶ 9-12.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Abraham Chapa and Vortex Industries, LLC (“Defendants”) demur to the Second Cause of Action for Negligent Infliction of Emotional Distress in the Complaint filed by Plaintiff Adedayo Abioye (“Plaintiff”) on the grounds that the Second Cause of Action fails to state facts sufficient to state a cause of action against Defendant under Code of Civil Procedure Section 430.10(e). Notice of Demurrer (the “Demurrer”) at 2:4-9 (filed: Oct. 10, 2025).

In addition, Defendants move under Code of Civil Procedure Section 436 and Civil Code Section 3294 to strike the following portions of the Complaint because they argue Plaintiff improperly seeks to recover punitive damages based on Causes of Action for Negligence for which he has no such right:

1. “For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct.” Complaint at 5:5-6;
2. “For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct.” Complaint at 5:11-12

Notice of Defendants’ Motion to Strike (the “Motion to Strike”) at 1:26-2:8 (filed: Oct. 10, 2025).

Defendants’ Demurrer and Motion to Strike came on for hearing on July 10, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules in this Order on Demurrer and Motion to Strike as follows.

I. Factual Allegations

According to the Complaint, on June 26, 2025, Plaintiff’s vehicle was struck by Abraham Chapa while driving as an employee in a vehicle for Vortex. At the scene of the collision, Mr. Chapa admitted to being distracted by a biker and did not see Plaintiff’s vehicle. (Complaint ¶¶ 12, 13)

As a result of the collision, Plaintiff’s vehicle was a total loss and he suffered injuries to his neck, back, and head. Plaintiff also suffered emotional and mental distress. Defendants’ insurance company communicated their willingness to compensate Plaintiff for his injuries, but have not done so. (Complaint ¶¶ 15, 17)

Plaintiff initiated this action by filing the Complaint on September 9, 2025, alleging causes of action for negligence and negligent infliction of emotional distress.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).)

A demurrer may be used by “[t]he party against whom complaint has been filed” to object to the legal sufficiency of the pleading as whole, or to any “cause of action” stated therein, on one or more of the grounds enumerated by statute. (C.C.P. §§ 430.10 & 430.50.)

“A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 213-214.) In ruling on demurrers, courts may consider matters subject to judicial notice. (*Scott v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 743, 751.) Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.)

Under California law, even where a demurrer is sustained, leave to amend the complaint is routinely granted. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.) That said, to be granted leave to amend where a demurrer is sustained, the California Supreme Court instructs that “the burden is on plaintiff” to “show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” *Goodman v. Kennedy* (1976) 18 Cal. 3d 335, 349; *see also Hendy v. Losse* (1991) 54 Cal. 3d 723, 742 (where demurrer is sustained, the burden is on the plaintiff “to demonstrate the manner in which the complaint might be amended” to cure the pleading defect).

Regarding a motion to strike, “[a]ny party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. . . .” (Code Civ. Proc. § 435.) “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436.) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc. § 437, subd. (a).)

III. In deciding Defendants' Demurrer and Defendants' Motion to Strike now, the Court will consider Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike now.

In response to Defendants' Demurrer and Motion to Strike, Plaintiff on December 5, 2025 filed Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike (hereinafter, "Plaintiff's Motion to Strike"). In Plaintiff's Motion to Strike, Plaintiff argues that Defendants' Demurrer and Defendants' Motion to Strike are impermissible, frivolous, and irrelevant. (Notice of Plaintiff's Motion to Strike at 2:3-9). And for whatever reason, on December 23, 2025, Plaintiff refiled Plaintiff's Motion to Strike with no substantive changes.

Plaintiff has filed no other Opposition papers to Defendants' Demurrer and Defendants' Motion to Strike. Nonetheless, as the "nature of a motion is determined by the nature of the relief sought, not by the label attached to it[.]"⁶ the Court will consider Plaintiff's Motion to Strike to be Plaintiff's "Opposition papers" for purposes of resolving Defendants' Demurrer and Defendants' Motion to Strike now.

IV. Judicial Notice

Plaintiff seeks judicial notice of the following:

- Exhibit A - Defendants' Abraham Chapa & Vortex Industries, LLC's Demurrer filed in this case
- Exhibit B - Defendants' Abraham Chapa & Vortex Industries, LLC's Motion to Strike filed in this case
- Exhibit C - Plaintiff Adedayo Abioye's Statements of Damages filed in this case
- Exhibit D - Plaintiff Adedayo Abioye's Proof of Service of Complaint and Statement(s) of Damages filed in this case
- Exhibit E - Meet and Confer Correspondence

As for Exhibits A-D, Plaintiff's Request for Judicial Notice is **GRANTED IN PART** as follows. Pursuant to Evidence Code §§ 452 and 453, the Court may take judicial notice of the existence of judicial opinions and court documents, along with the truth of the results reached - in the documents such as orders, statements of decision, and judgments - but cannot take judicial notice of the truth of hearsay statements in decision or court files, including pleadings, testimony, or statements of fact. (See, *Williams v. Wraxall* (1995) 33 Cal. App. 4th 120, 130, fn. 7, citing *Gilmore v. Superior Court* (1991) 230 Cal. App. 3d 416, 418.) Accordingly, the Court takes Judicial Notice of the existence

⁶ *City & County of S. F. v. Muller* (1960) 177 Cal. App. 2d 600, 603; see also *Eddy v. Sharp* (1988) 199 Cal. App. 3d 858, 863

of Exhibits A-D.

As for Exhibit E, Plaintiff's Request is **DENIED**. These materials (argumentative meet and confer correspondence) are not matters fit for judicial notice since they are reasonably subject to dispute. (See, *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

V. Analysis of Defendants' Demurrer to the Second Cause of Action for Negligent Infliction of Emotional Distress

Defendants contend Plaintiff's second cause of action for negligent infliction of emotional distress is subject to demurrer because (1) it is not an independent tort, and (2) it is duplicative of the first cause of action for negligence. (Demurrer at 7:15-8:11) The Court agrees.

In his Complaint, Plaintiff brings a First Cause of Action for Negligence and a Second Cause of Action for Negligent Infliction of Emotional Distress. But under California law, "[a] claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply." (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1377.) Emotional distress *damages* are recoverable as a remedy in a negligence cause of action when they result from the breach of a duty owed to the plaintiff. (See, *Levy v. Only Cremations for Pets, Inc.*, (2020) 57 Cal. App. 5th 203, 217.)

Here, both the first cause of action for negligence and the second cause of action for negligent infliction of emotional distress are based on the identical factual allegations regarding the June 26, 2025, motor vehicle accident. Both causes of action incorporate by reference the same statement of facts set forth in the complaint. Both allege that Defendants were negligent and that Plaintiff was harmed as a result of Defendants' negligence. The only distinction Plaintiff attempts to draw is that the first cause of action seeks damages for general harm while the second cause of action seeks damages for serious emotional distress. (Complaint ¶¶ 12-21, Prayer)

This attempted distinction is insufficient under California law. Plaintiff's emotional distress damages are properly recoverable as damages within the First Cause of Action for Negligence. The Complaint itself acknowledges that Plaintiff suffered both physical injuries and mental and emotional distress as a result of the accident. These emotional distress damages are a component of the harm Plaintiff alleges in the negligence cause of action and cannot be separately pleaded as an independent tort.

Plaintiff's Opposition papers⁷ suggest that the two causes of action are not duplicative because he suffered different types of damages, citing his statements of

⁷ *I.e.*, Plaintiff's Motion to Strike Defendants' Demurrer and Defendants' Motion to Strike (filed Dec. 5, 2025, and refiled Dec. 23, 2025), discussed at 4:10-23 *supra*.

damages that allocate \$1,000,000 to physical and pain-and-suffering damages under the negligence claim and \$1,000,000 to emotional distress damages under the negligent infliction of emotional distress claim. This argument misunderstands California pleading requirements. The mere fact that a plaintiff seeks different categories of damage does not transform a single negligence claim into two separate causes of action.

Hence, Plaintiff's Second Cause of Action for Negligence fails at the pleading stage because it is not an independent cause of action under California law. Accordingly, the Court **SUSTAINS** Defendants' Demurrer to the Second Cause of Action for Negligent Infliction of Emotional Distress.

The remaining question is whether the Court should grant leave to amend. Here, because as a matter of California law Negligent Infliction of Emotional Distress (the Second Cause of Action) is not an independent cause of action but rather a type of damages recoverable from the Negligence claim, there are no facts that Plaintiff could plead in an amendment that would save the Second Cause of Action. So as this claim, on its face, is incapable of amendment to remedy this defect as a matter of law, the Court will not grant Plaintiff leave to amend here.

Likewise, for leave to amend to be granted where, as here, a demurrer is sustained, Plaintiff has the burden of showing how he can amend his complaint and *how that amendment will change the legal effect of his pleading*. *Goodman*, 18 Cal. 3d at 349, *supra*. Here, Plaintiff has not met that burden, and indeed *cannot* meet that burden because Negligent Infliction of Emotional Distress is not an independent cause of action under California law.

Accordingly, Defendants' Demurrer to Plaintiff's Second Cause of Action for Negligent Infliction of Emotional is **SUSTAINED WITHOUT LEAVE TO AMEND**.

VI. Analysis of Defendants' Motion to Strike Punitive Damages from the Complaint

Defendants move to strike Plaintiff's prayer in both the First Cause of Action and Second Cause of Action—"For punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct" (Complaint at 5:5-6 & 5:11-12)—because the Complaint does not allege any intentional conduct that would constitute oppression, fraud, or malice. (Motion to Strike at 4:22-6:8) The Court agrees.

In order to state a *prima facie* claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined in the statute as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1) "Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's

rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Here, Plaintiff’s allegations describe ordinary negligence: a driver’s momentary inattention resulting in a traffic accident. There are no factual allegations suggesting Defendants acted with malice, oppression or fraud. There are no factual allegations whatever that elevate the conduct alleged beyond simple negligence. Something more than mere negligence or even gross negligence is always required for punitive damages. (See, *Gombos v. Ashe* (1958) 158 Cal. App.2d 517, 527.) “The mere carelessness or ignorance of the defendant does not justify the imposition of punitive damages. . . . Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210, internal citations and quotes omitted)

Plaintiff’s Opposition papers⁸ suggest that the basis for punitive damages is Defendants’ alleged failure to compensate him for his injuries and the insurance company’s delay in settlement. However, these post-accident actions do not relate to the conduct that caused the accident itself, which is the basis for the negligence claims. Moreover, allegations that a defendant or its insurer failed to promptly settle a claim or compensate an injured plaintiff do not constitute the type of despicable conduct carried on with willful and conscious disregard of rights that would support punitive damages under Section 3294.

Accordingly, Defendants’ Motion to Strike Plaintiff’s prayer “[f]or punitive damages in an amount appropriate to punish Defendants and deter others for engaging in similar conduct” (Complaint at 5:5-6 & 5:11-12) is **GRANTED**.

VII. Conclusion & Order

Defendants’ Demurrer to Plaintiff’s Second Cause of Action for Negligent Infliction of Emotional is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Defendants’ Motion to Strike Plaintiff’s prayer for punitive damage is **GRANTED**.

Moreover, because in deciding this Order Sustaining Defendants’ Demurrer and Granting Defendants’ Motion to Strike, the Court fully considered but rejected all arguments in Plaintiff’s Motion to Strike Defendants’ Demurrer and Defendants’ Motion to Strike, **the hearing on Plaintiff’s Motion to Strike that is currently on calendar for September 16, 2026 is VACATED as moot.**

⁸ *I.e.*, Plaintiff’s Motion to Strike Defendants’ Demurrer and Defendants’ Motion to Strike (filed Dec. 5, 2025, and refiled Dec. 23, 2025), discussed at 4:10-23 *supra*.

SO ORDERED.

Date: July 10, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Adedayo Abioye v. Abraham Chapa, et al.*

Case No.: 25CV474504

See Line **5** above for complete tentative ruling on Defendants' Demurrer and Defendants' Motion to Strike.